

2. **Equitable fee may be devised without the word heirs applied to it. — Case of a deed.** — If an estate be *devised* unto and to the use of A. *and his heirs*, upon trust for B., without executory trust, because it must be shaped or adapted to the intentions of the testator or settlor; *City Phila. v. Girard*, 45 Pa. St. 9; 84 Am. Dec. 470; *Cushing v. Blake*, 30 N. J. Eq. 689; *Edmundson v. Dyson*, 2 Kelly, 307; *Schley v. Lyon*, 6 Ga. 530; *Mullany v. Mullany*, 40 N. J. Eq. 16. It is to be noticed of executory contracts that the intention of the settlor governs; *Wood v. Burnham*, 6 Paige, 513; and there must be some opportunity for an exercise of judgment in determining his intention; *McElroy v. McElroy*, 113 Mass. 509; the beneficiary is not yet clothed with an equitable title, but has a right to have some act done which will vest in him such title; *Nicoll v. Ogden*, 29 Ill. 323; 61 Am. Dec. 311.

A trust is executed when no act is necessary to give it effect, and the trust is fully and finally declared in the instrument, in which case the consideration is not material; *Massey v. Huntington*, 118 Ill. 80; *Buchanan v. Howard*, 3 Tenn. Ch. 206; where an active duty is imposed on the trustee, the trust is not executed until the duty has been, or may have been, performed; *Sprague v. Sprague*, 13 R. I. 701; or until the full beneficial enjoyment rests; *Kay v. Scates*, 37 Pa. St. 31.

A trust is executory where something remains to be done by the trustee; *Schley v. Lyon*, 6 Ga. 530; such a trust will not be executed at the suit of a volunteer; *Clark v. Durand*, 12 Wis. 223; executory or imperfect trusts are only directory, and, if necessary, a Court of Equity will determine the intention of the settlor from an examination of the whole instrument; *Mullany v. Mullany*, 4 N. J. Eq. 16; an executory agreement to create a trust will not be enforced; *Est. of Webb*, 49 Cal. 542; or an unexecuted trust if without consideration; *Badgley v. Votrain*, 68 Ill. 25. See, also, *Padfield v. Padfield*, 68 Ill. 210; *Boyd v. England*, 56 Ga. 598; *Eaton v. Eaton*, 35 N. J. Eq. 290; *Tanner v. Skinner*, 11 Bush, 120.

Marriage articles and settlements. — A settlement will be made according to the intention of the parties, if possible; *Allen v. Rumph*, 2 Hill. Eq. 1; *Gause v. Hale*, 2 Ired. Eq. 241. If it be of personal property, which is conveyed before marriage, it will be regarded as executed; *Tillinghast v. Coggeshall*, 7 R. I. 383. Primogeniture and preferences to the eldest son are abolished in America, and so is joint tenancy in most of the states. If a settlement does not conform to the decree in the case, the court will insist upon having it made to do so; *Temple v. Hawley*, 1 Sandf. Ch. 154; *Grout v. Van Schoonhoven*, 1 Sandf. Ch. 342; generally speaking, mere volunteers cannot seek specific performance of the articles; *Clark v. Durand*, 12 Wis. 223; *Tanner v. Skinner*, 11 Bush, 120; *Gevers v. Wright*, 3 Green. Ch. 330; *Bunn v. Winthrop*, 1 Johns. Ch. 336; *Blecker v. Bingham*, 3 Paige, 246; but if it appears from the articles that collateral relatives may take the property, they will not be regarded as volunteers; *Dennison v. Goehring*, 7 Barr. 175; *King v. Whitely*, 10 Paige, 465; *Neves v. Scott*, 9 How. 210; overruled in 13 How. 268.

Executory trusts created by will. — In these there is no presumption as to the intention of the testator; *Robertson v. Johnaton*, 36 Ala. 197; *McPherson v. Snowden*, 19 Md. 197; *Allen v. Henderson*, 49 Pa. St. 333.

An executory agreement to create a trust cannot be enforced; *Est. of Webb*, 49 Cal. 542; an executed express trust not manifested by writing is incapable of legal recognition; *Eaton v. Eaton*, 35 N. J. L. 290. An unexecuted trust, without consideration or delivery, will not be enforced; *Badgley*